

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 3, 2026
8:30 a.m./1:30 p.m.

12. PATRICIA DAVY V. CHARLES DAVY

PFL20200494

Petitioner filed a Request for Order (RFO) on June 11, 2026, requesting child custody orders as well as child support orders. Petitioner did not concurrently file an Income and Expense Declaration. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on July 27, 2026 and a review hearing on September 3, 2026. Proof of Service shows Respondent and the Department of Child Support Services (DCSS) were served with the RFO only, on June 23, 2026.

Neither party appeared for the CCRC appointment as instructed.

Respondent has not filed a Responsive Declaration.

The court drops the matter from calendar due to the lack of proper service, the failure to appear at CCRC, and the failure to file an Income and Expense Declaration.

Respondent filed an RFO following the court's denial of his ex parte application for emergency orders on August 17, 2026. Proof of Service shows Petitioner was served with some, but not all the required documents on August 25, 2026.

Petitioner filed a Responsive Declaration to the ex parte.

The court drops the matter from calendar due to the lack of proper service.

TENTATIVE RULING #12: PETITIONER'S JUNE 11TH RFO IS DROPPED FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE.

RESPONDENT'S AUGUST 17TH RFO IS DROPPED FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE.

ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.